

Amended Excerpts

1. Line 125 through 135:

- 125 (iii) construction industry professionals;
- 126 (iv) educators and school administrators; and
- 127 (v) the Division of Facilities Construction and Management Administration.
- 128 (3) (a) ~~→~~ **To promote cost-effective school construction and facilitate sharing of**
- 128a **successful designs among LEAs,** [{**When**}] **when** ~~←~~ ~~→~~ an LEA enters into a
- 128b contract for architectural or engineering services for
- 129 school construction using public funds, the LEA ~~→~~ [{**shall**}] **may** ~~←~~ ~~→~~ :
- 130 (i) ~~→~~ **negotiate to** ~~←~~ ~~→~~ require in the contract that the LEA owns all plans,
- 130a specifications, and design
- 131 documents produced under the contract; and
- 132 (ii) ~~→~~ **if negotiated,** ~~←~~ ~~→~~ retain all intellectual property rights to the design.
- 133 (b) An LEA that completes a school building design shall submit the final design
- 134 documents to the state board for inclusion in the design library.
- 135 (c) The state board shall: